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July 29, 2016					
FEDERAL		MARITIME		COMMISSION	

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO. 1953(I)

KAIRAT NURGAZINOV

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

ORDER GRANTING RESPONDENTS' MOTION FOR EXTENSION OF TIME

On July 28, 2016, Respondents filed a Motion for Extension of Time to respond to Complainants' Response to Order for Parties to Supplement the Record. *See Igor Ovchinnikov, Irina Rzaeva, and Denis Nekipelov v. Michael Hitrinov a/k/a Michael Khitrinov, Empire United Lines Co., Inc., and CarCont, Ltd.*, FMC No. 15-11 (ALJ June 29, 2016) (Order for Parties to Supplement the Record). Responses are currently due August 2, 2016. *See id.* *See also Igor Ovchinnikov, Irina Rzaeva, and Denis Nekipelov v. Michael Hitrinov a/k/a Michael Khitrinov, Empire United Lines Co., Inc., and CarCont, Ltd.*, FMC No. 15-11 (ALJ July 22, 2016) (Order Regarding July 26, 2016 Filings). Respondents ask that the due date be extended to August 9, 2016. Respondents state that counsel for Respondents will be in New Jersey July 27 through July 30, 2016, "attending to obligations to the United States Department of Justice as well as responsibilities relating to the

passing of his father. Counsel will technically be back in the office on Sunday, July 31, but will be in proceedings relating to obligations to the United States Department of Justice from Sunday, July 31 through Tuesday, August 2.” (Respondents’ Motion for Extension of Time (filed July 28, 2016) at 1-2.)

On July 28, 2016, Complainants filed an opposition to the motion. Complainants argue that “this *umpteenth* application by Respondents is untimely, disingenuous and is made with ‘unclean hands’, and upon *no good cause shown*. Consequently, it is respectfully submitted that Respondents’ request for an extension of time should be denied in its entirety.” (Complainants’ Response to Respondents’ Motion for Extension of Time at 1-2 (emphasis in original).)

The information sought by the undersigned when ordering the supplements to the record in the June 29, 2016, order is directly related to the question of the Commission’s jurisdiction over the claims in this proceeding. Complainants’ opposition to the motion for extension sets forth arguments that could support denial of the motion for extension. Some of Complainants’ claims seem as appropriately or more appropriately submitted to bar counsel than the Commission. Nevertheless, because of the importance of the information to the question of the Commission’s jurisdiction and the negligible impact a one week delay will have on this proceeding, Respondents’ motion for extension of time will be granted.

Upon consideration of Respondents’ Motion for Extension of Time, Complainants’ opposition thereto, and the record herein, it is hereby

ORDERED that Respondents’ motion be **GRANTED**. Time for Respondents and Complainants to respond to the other parties’ submissions filed pursuant to the June 29, 2016, order to supplement the record is extended to August 9, 2016.

A handwritten signature in blue ink, reading "Clay G. Guthridge", is written over a horizontal line.

Clay G. Guthridge
Administrative Law Judge